Data Governance, Compliance and Ethics



WEEK 03: PRIVACY AND DATA PROTECTION (PART 1)

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Overview of course content

Data Governance and Management (Weeks 1-3)

Privacy and Data Protection (Weeks 4-6)

Ethical Issues Pertaining to Data (Weeks 7-9)

Fairness, Accountability, and Transparency of Algorithmic Systems (Weeks 10-12)

Agenda

The Right to Privacy
- European Data Protection Origins
- Brief history of human rights
- Concept of Privacy, examples of threats to privacy
- Types of EU Legislation
- The right to privacy in national law, Universal declaration of human rights, European Convention on Human Rights, EU Charter of Fundamental Rights

Data Protection Regulation Scope
- Irish Data Protection Commission
- Data Protection Regulation Scope
- Key Provisions in the GDPR (Material Scope, Personal Data, Processing, Data Controller and Processor (roles and responsibilities), Data Protection Principles, Data Subject Rights, Privacy by Design and by Default, Legitimate Bases for processing, Record of processing activities, Informed Consent)

Data Protection In Practice
- Data Transfer to Third Countries
- Surveillance including CCTV
- Privacy and regulatory compliance issues pertaining to specific sectors (Cloud Computing)
- Data Anonymization
- EU Digital Agenda

Data protection and privacy



What is Privacy for You?

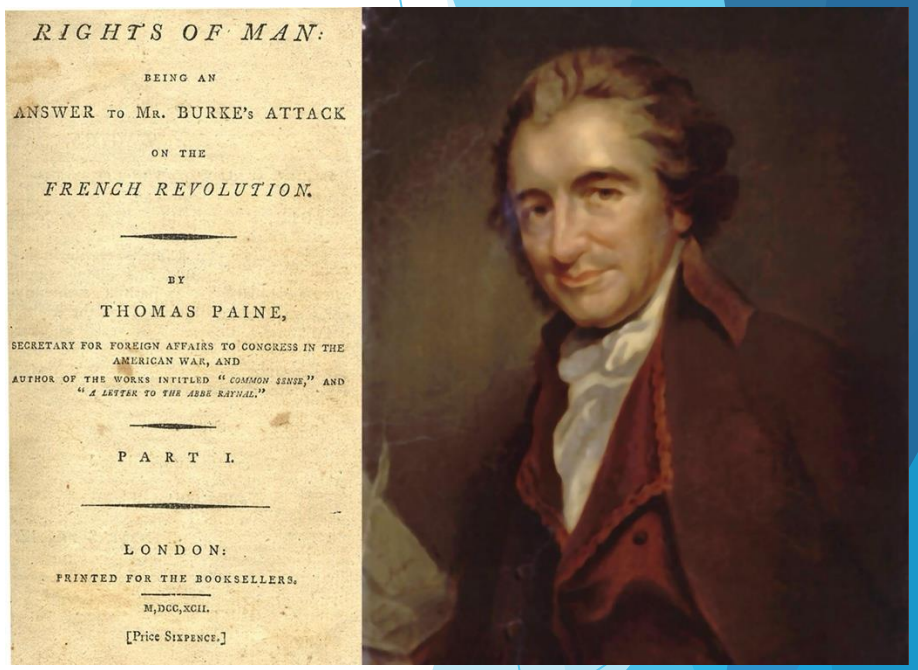
- Privacy is a fundamental right, essential to autonomy and the protection of human dignity, serving as the foundation upon which many other human rights are built.

- Privacy enables us to create barriers and manage boundaries to protect ourselves from unwarranted interference in our lives, which allows us to negotiate who we are and how we want to interact with the world around us.

- Privacy helps us establish boundaries to limit who has access to our bodies, places and things, as well as our communications and our information.

A Short History of Human Rights

- Privacy underpins human dignity
- Universal human rights a relatively new concept but it does have its antecedents in documents through history:
  - Magna Carta (1215)
  - English Bill of Rights (1689)
  - French Declaration on the Rights of Man and Citizen (1789)
  - US Constitution and Bill of Rights (1791)
- Problem: Many of these excluded different groups and were therefore not universal.
- Some writers were very influential in the development of the concept (e.g., Thomas Paine and the Rights of Man(1791)) but it was not until the 20th century that the concept came in to its own).


RIGHTS OF MAN:

BEING AN

ANSWER TO MR. BURKE'S ATTACK

ON THE

FRENCH REVOLUTION.

BY

THOMAS PAINE,

SECRETARY FOR FOREIGN AFFAIRS TO CONGRESS IN THE AMERICAN WAR, AND AUTHOR OF THE WORKS INTITLED "COMMON SENSE," AND "A LETTER TO THE ABBE RAYNAL."

PART I.

LONDON:

PRINTED FOR THE BOOKSELLERS.

M,DCC,XCII.

[Price SIXPENCE.]

"popular political revolution is permissible when a government does not safeguard the natural rights of its people"

http://hrlibrary.umn.edu/edumat/hreduseries/hereandnow/Part-1/short-history.htm

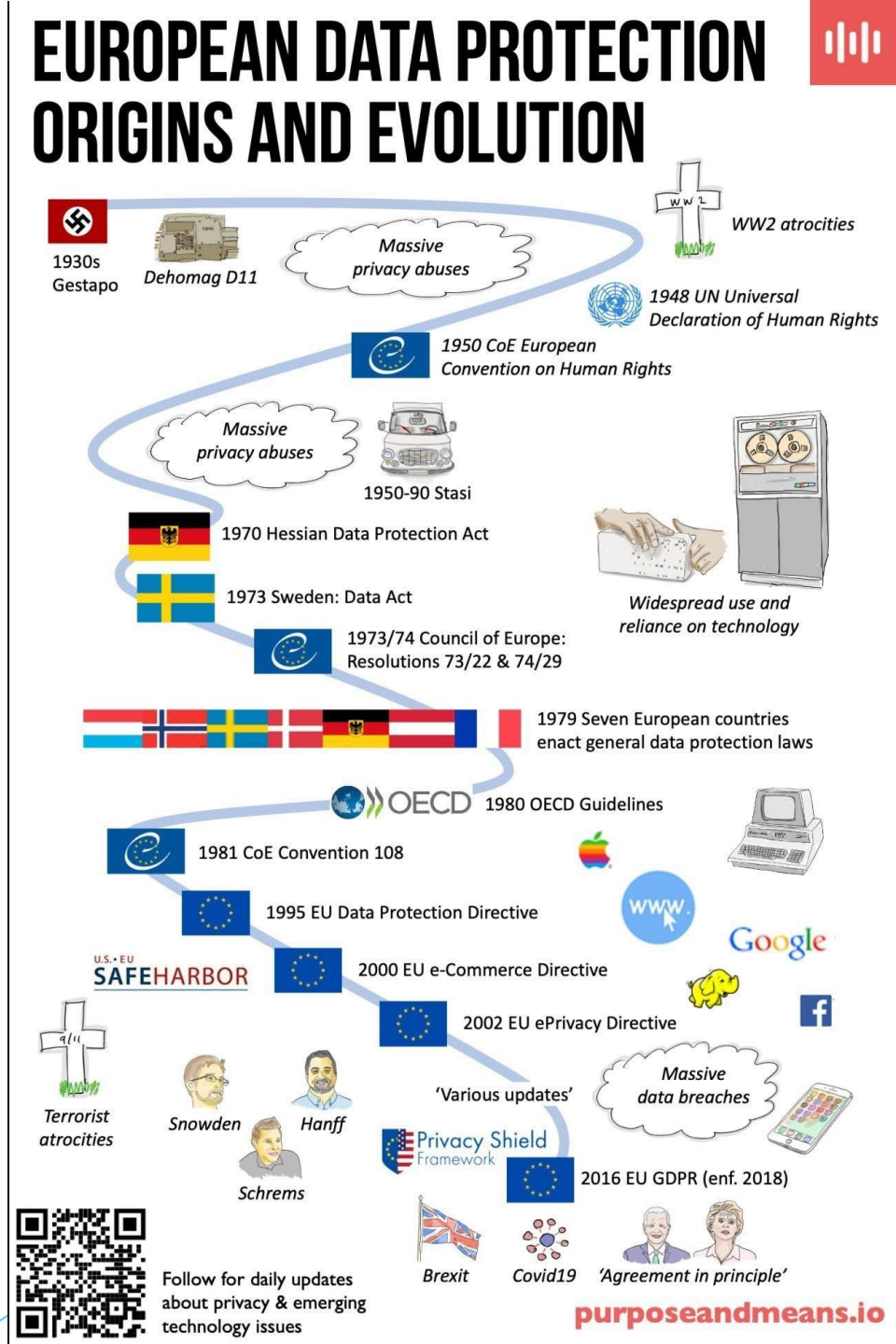
European Data Protection Origins

"No matter how much an authority or company wants us to trust them, data about us in the wrong hands can seriously harm us."

Tim Clements (Purpose and Means)

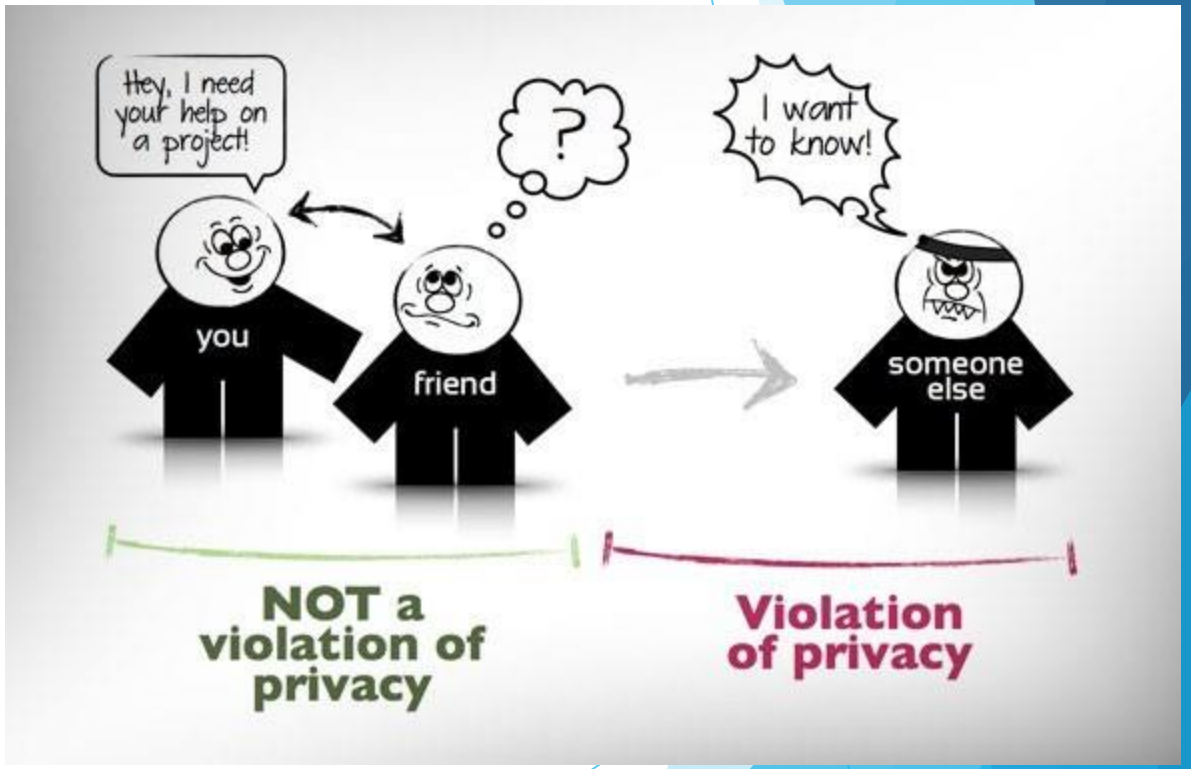
- Comprehensive data protection laws are essential for protecting human rights
- 25th May 2022 – 4th year anniversary of the GDPR
- Example of events:
  - 1945 – establishment of the United Nations
  - 1948 – declaration of the **Universal Declaration of Human Rights**, a milestone document in the history of human rights





Concept of Privacy

- **Right of Privacy** can be defined as the right of a person to enjoy his own presence by himself and decide his boundaries.
- Individual has a right to limit sharing his personal information with other individuals or entities or the media.
- Personal information is a form of personal property to an individual.



Confidentiality/Privacy

3 Parameters of Confidentiality

- The information is confidential
- The information is communicated in confidence.
- There must be authorized use of the information



- These 3 parameters have been used in legal cases to probe a breach of confidentiality
- Privacy is a broader concept than Confidentiality

Example Of Threats To Privacy

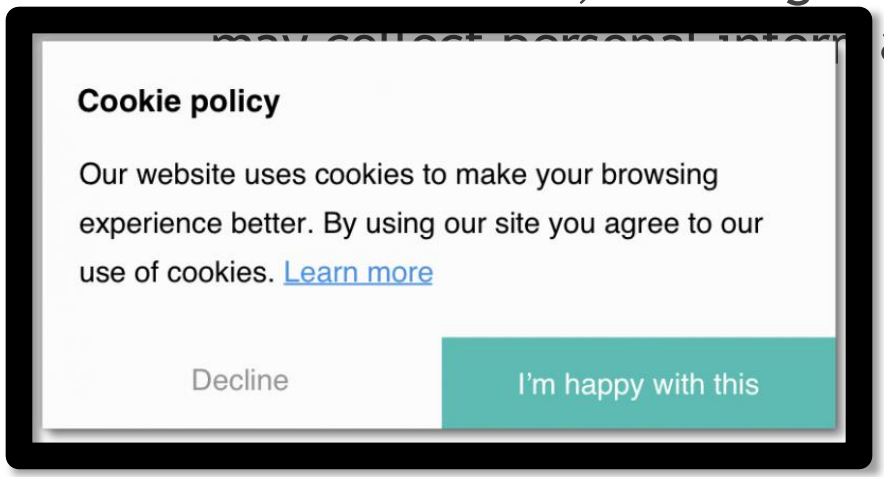
- Use of Cookies*, web bugs** and trojans*** and other malware may collect personal information when you use the internet

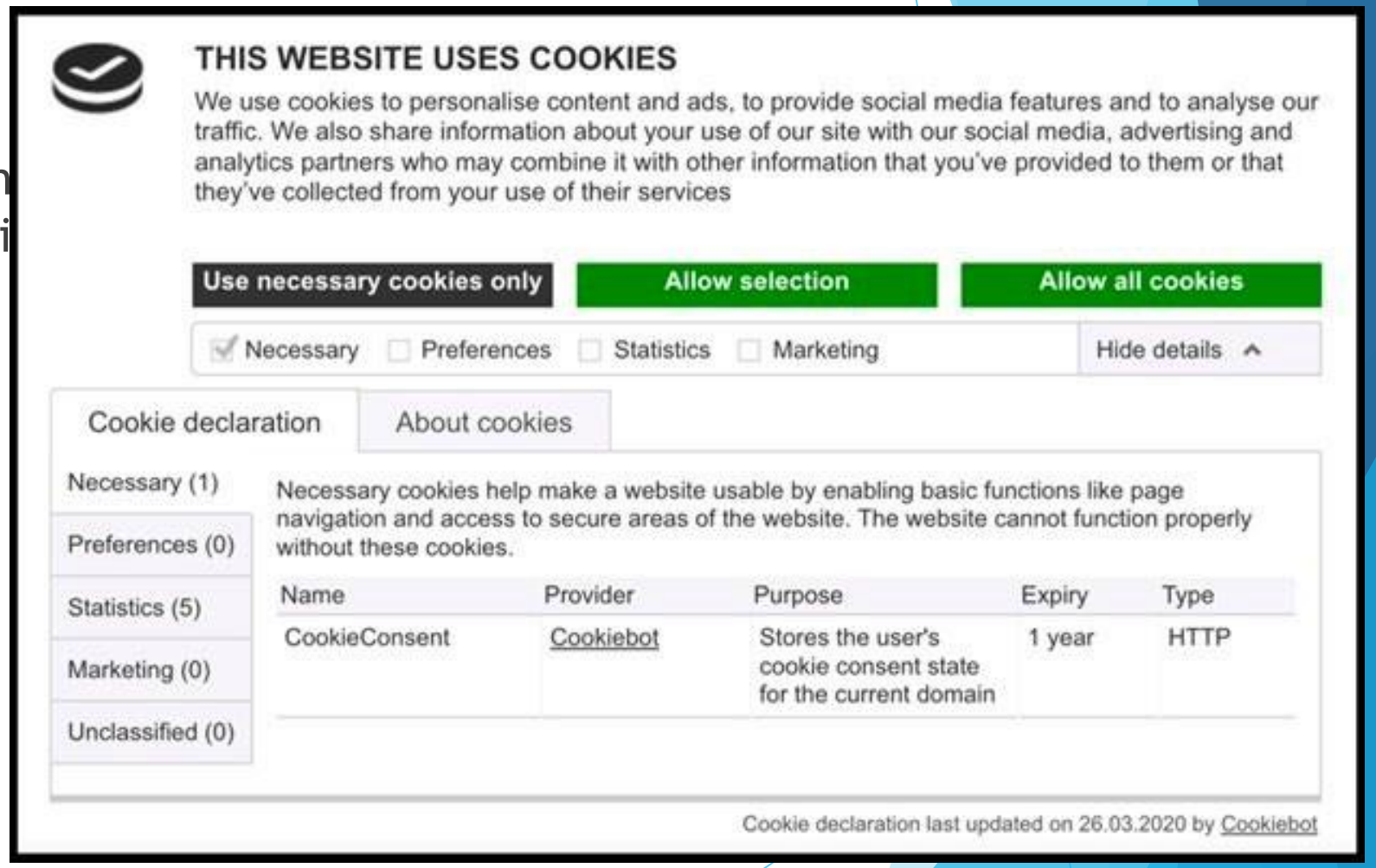


*Cookies provide a way for the website to recognize you and keep track of your preferences. Advertising companies install cookies to study the preferences.
** A web bug is in the form of graphic that lies on a website that makes it possible for a third party to check the person who reads a web page or an email message.
*** A Trojan horse, or Trojan, is a type of malicious code or software that looks legitimate but can take control of your computer. A Trojan is designed to damage, disrupt, steal, or in general inflict some other harmful action on your data or network. (https://us.norton.com/internetsecurity-malware-what-is-a-trojan.html)

Example Of Threats To Privacy

- Use of Cookies*, web bugs** an
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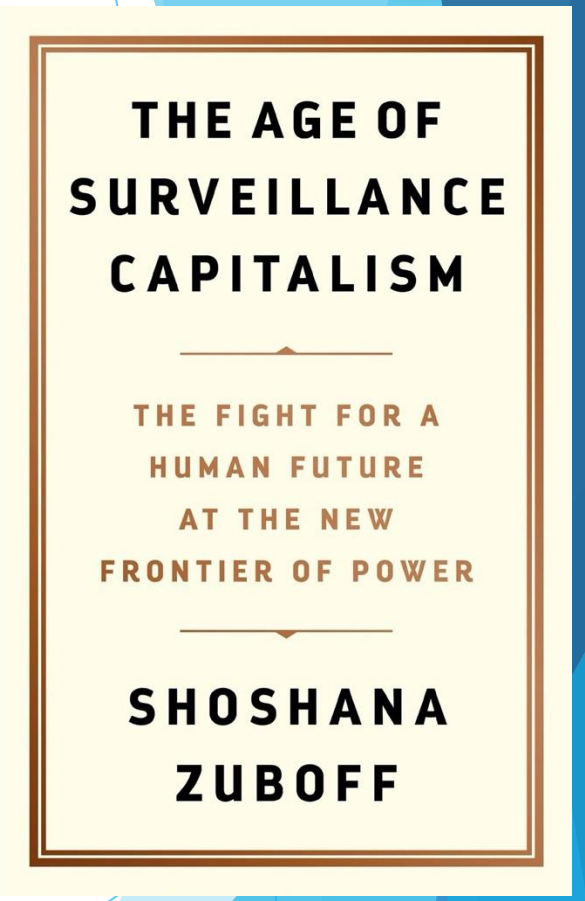




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Example Of Threats To Privacy

- Use of Cookies*, web bugs** and trojans*** and other viruses may collect personal information when you use the internet
- Costello has argued that "In light of their integrated collection and analysis capabilities, Google and Facebook have become 'triple threats' – offering analytics services to other websites, collecting and aggregating large amounts of data through their own platforms and benefitting from the highly targeted profiles of consumers which they can build and auction to advertisers as a result – part of a broader model which Shoshanna Zuboff has called 'surveillance capitalism' and Danielle Citron and Frank Pasquale have referred to as a central part of the 'scored society.' (Costello, 2020)



Costello, R.A., 2020. The impacts of AdTech on privacy rights and the rule of law. *The Impacts of AdTech on Privacy Rights and the Rule of Law*, *2*.

Example Of Threats To Privacy

Data Misuse

Cambridge Analytica had purchased Facebook data on tens of millions of Americans without their knowledge to build a “psychological warfare tool,” which it unleashed on US voters to help elect Donald Trump as president.

Watch Trailer
https://youtu.be/iX8GxLP1FHo



Types of EU legislation



- **EU legislation**
  - **Primary Legislation**
    - **Treaties**
      - Directly applicable.
        All EU law is derived from the Treaties.
        Set out the rules for how the institutions of the EU function
  - **International Agreements EU**
    - Instruments produced by the EU in the exercise of its external competences
  - **Secondary Legislation**
    - **Binding**
      - **Regulations**
        - Directly applicable.
          Apply to all member states.
          Enforced through the national courts
      - **Directives**
        - Set goals for member states to implement.
          Transposed into national law
      - **Decisions**
        - Only relevant to specified bodies
    - **Non-Binding**
      - **Recommendations**
        - EU member states can either follow the advice or not.
          Suggest a line of action without imposing any legal obligation
      - **Opinions**
        - Allows the institutions to make assessments of situations or developments in the Union in a non-binding fashion

https://eur-lex.europa.eu/EN/legal-content/summary/sources-of-european-union-law.html

The Right to Privacy

The right to privacy in Ireland is guaranteed both in:

1. The Constitution (National basic law)
2. European Level
   - ✓ 1948: UN Universal Declaration of Human Rights
   - ✓ 1953: European Convention on Human Rights (ECHR)
   - ✓ 1958: EU Charter of Fundamental Rights

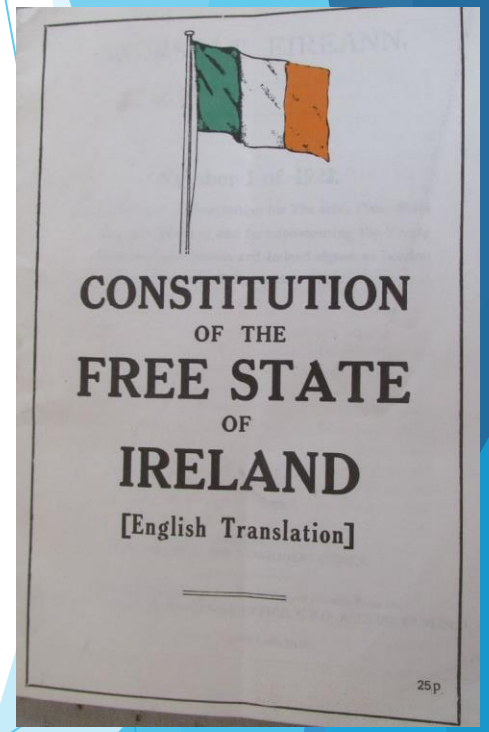
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Rights Under Constitution Of Ireland (1937)

- The Constitution of Ireland is the basic law of the State (containing 50 Articles)
- Bunreacht na hEireann (Basic Law of Ireland) was accepted by the people of Ireland in the referendum (thereby providing its popular legitimacy) and came into operation in December 1937
- It recognises and guarantees protection of the fundamental rights of people living in Ireland
- **Articles 40-44 address fundamental rights** according to Irish constitution
  - Article 40 deals personal rights
  - article 41 deals with the family
  - Article 42 deals with education
  - Article 43 deals with private property
  - Article 44 deals with religion
  - Article 45 gives broad directive principles on social policy but does not have direct applicability the citizens



Articles 40 to 44 set out these fundamental rights. Many of the rights apply to everyone living in Ireland, including non-Irish citizens.

The Right to Privacy under Irish Constitution

- There are no direct references to privacy rights in the Irish Constitution
- **The Right to Privacy has been recognised as one of the implied rights or so-called unenumerated personal rights**, protected by Article 40.3.1 of the Constitution:

  "The state guarantees in its laws to respect, and as far as practicable, by its laws to defend and vindicate the personal rights of the citizen."

- Examples:
  - ✓ *McGee v Attorney General [1973] : The right to marital privacy*

  The court indicated that the right of privacy inheres in an individual, by reason of their human personality. The State is not permitted to intrude, without good objective justification, in relation to decisions taken within the scope of the zone of privacy.

  - ✓ *Kennedy and others v Ireland: a breach of a journalist's right to privacy*

  unlawful phone tapping by agents of the State, was held to be a breach of a journalist's right to privacy

- It is more likely that issues around privacy undated protection are more likely to be pursued under rights conveyed by sources other than the Irish constitution (like the convention and charter)

https://mcmahonsolicitors.ie/privacy-rights/
https://lawlorpartners.ie/case-for-compensation/the-right-to-privacy/

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Universal Declaration Of Human Rights (1948)

- After WW2, fundamental rights should be attributable to individuals irrespective of their country of origin
- Proclaimed by the UN General Assembly in Paris on 10 December 1948 as a common standard of achievements for all peoples and all nations.
- The Universal Declaration of Human Rights sets out, for the first time, fundamental human rights to be universally protected and it has been translated into over 500 languages.
- **Article 12** *"No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honor and reputation. Everyone has the right to the protection of the law against such interference or attacks. "*





Source: https://www.un.org/en/universal-declaration-human-rights/index.html

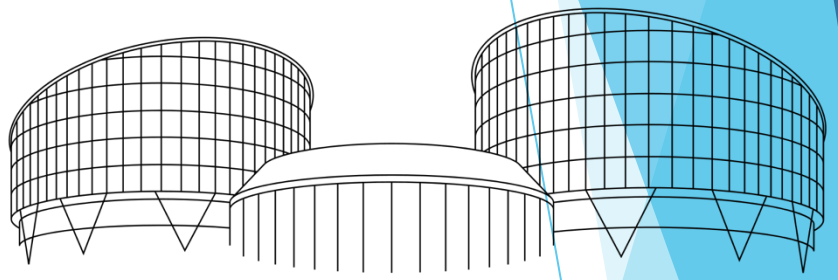
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The rights protected by the European Convention on Human Rights

- Article 2 Right to life
- Article 3 Prohibition of torture
- Article 4 Prohibition of slavery and forced labour
- Article 5 Right to liberty and security
- Article 6 Right to a fair trial
- Article 7 No punishment without law
- **Article 8 Right to respect for private and family life**
- Article 9 Freedom of thought, conscience and religion
- Article 10 Freedom of expression



EUROPEAN COURT OF HUMAN RIGHTS

COUR EUROPÉENNE DES DROITS DE L'HOMME

The convention is enforced under the European Court of Human Rights not to be confused with European Court of justice

https://www.coe.int/en/web/human-rights-convention

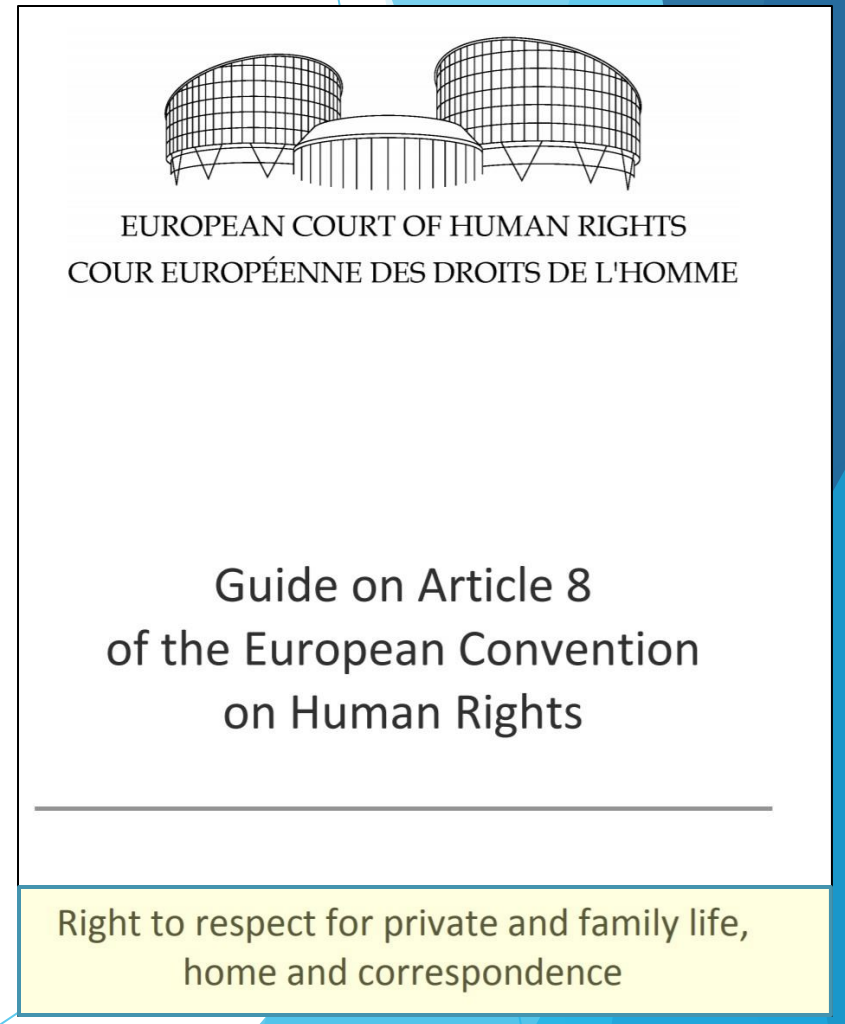
The Right to Privacy in the European Convention on Human Rights 1/2

- The Convention was based on the United Nations' Universal Declaration of Human Rights.
- Enforced in1953 by the European Court of Human Rights (ECtHR)

- Article 8 Right to respect for private and family life states that:

*1.Everyone has the **right to respect for his private and family life, his home and his correspondence**.*

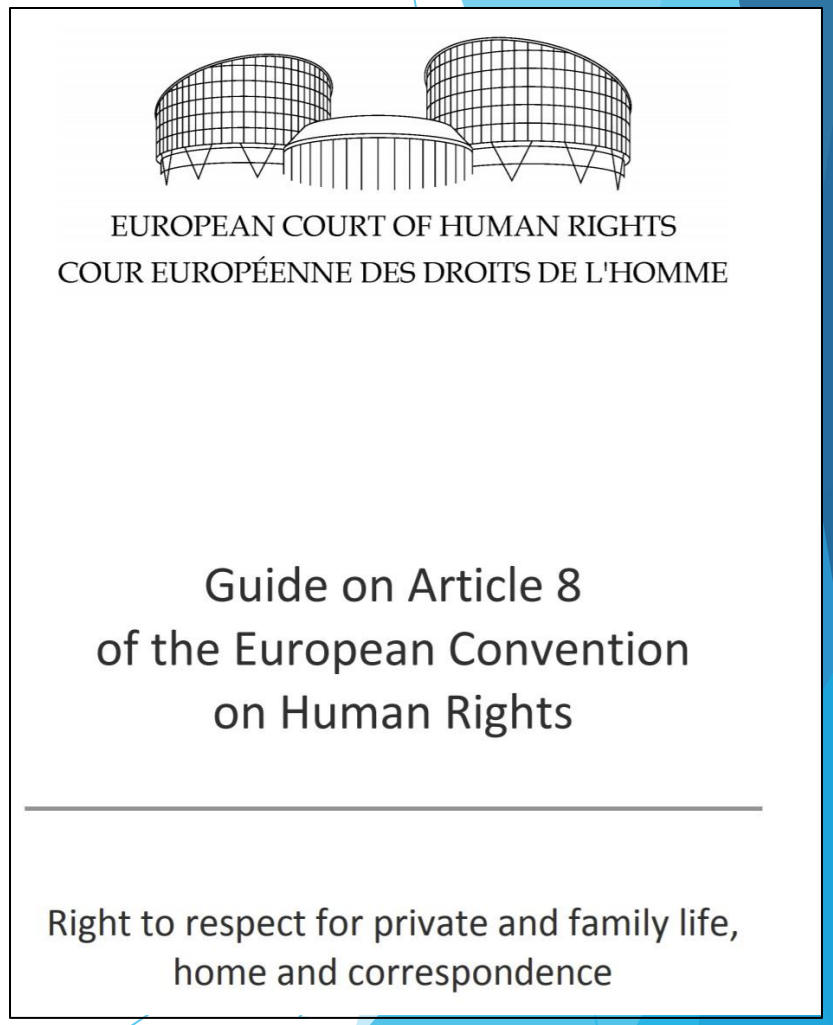
*2. There shall be no **interference by a public authority** with the exercise of this right **except** such as is in **accordance with the law** and is necessary in a democratic society in the interests of **national security**, **public safety** or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others.*



https://www.echr.coe.int/documents/guide_art_8_eng.pdf
https://www.coe.int/en/web/impact-convention-human-rights/right-to-privacy

Article 8 Of The ECHR – Right To Respect For Private And Family Life (2/3)

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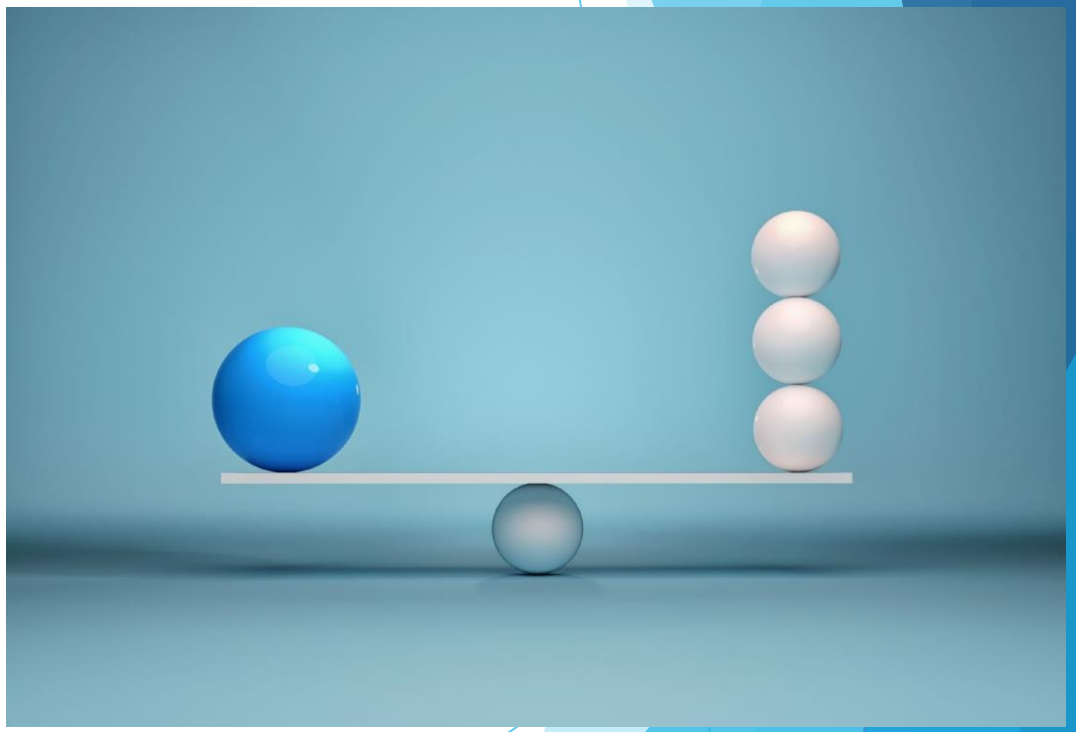


https://www.echr.coe.int/documents/guide_art_8_eng.pdf

Article 8, Right to Respect for Private and Family Life (3/3)

This right may be restricted if the restriction is:

- In the interests of national security;
- In the interests of public safety;
- For the economic well-being of the country;
- To prevent disorder or crime;
- To protect health or morals;
- To protect the rights and freedoms of others. Any interference or restriction must still be proportionate.



The Right to Privacy in the European Convention on Human Rights 2/2

Examples



DNA records of innocent people destroyed after privacy complaint

Two men from Sheffield had DNA samples taken by the police. Criminal charges against them were dropped. However, under British law the police could retain their DNA forever. The Strasbourg court ruled that keeping DNA records of innocent people breached their right to privacy.

THEMES: Right to privacy | United Kingdom

READ MORE



Justice for woman whose private health data was leaked to journalists

Gitana Biriuk took successful legal action against a newspaper that disclosed her HIV status. She only received a small amount in damages because of legal limits on what could be awarded. The European court ruled that these limits failed to protect Gitana's right to privacy. By the time of the judgment, Lithuania had removed the upper limit on compensation awarded by its courts in such cases.

THEMES: Right to privacy | Human rights and health | Lithuania

READ MORE



Privacy reforms after retired couple had their phone tapped

Jacques and Janine Huvig were a retired couple who had run a fruit-and-vegetable business. Police tapped their phone and listened to their conversations. At the time, investigators had almost limitless powers to tap the phones of almost anyone for almost any reason. The European court ruled that there must be clear legal limits and safeguards to protect people's privacy – leading to a change in...

THEMES: Right to privacy | France

READ MORE

https://www.coe.int/en/web/impact-convention-human-rights/right-to-privacy

European Court of Human Rights

- A.k.a. the Strasbourg Court, is an international court of the Council of Europe which **interprets the European Convention on Human Rights**



- The Convention established the European Court of Human Rights (ECtHR) in 1959 and is based in France
- The ECtHR oversees the implementation of the Convention in the 47 Council of Europe member states.
- Any person who feels their rights have been violated under the Convention by a state party can take a case to the Court.
- Judgments finding violations are binding on the States concerned and they are obliged to execute them.

https://www.echr.coe.int/Pages/home.aspx?p=home

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European Union And The Charter Of Fundamental Rights

- The Charter of Fundamental Rights of the European Union (the Charter) **brings together the fundamental rights of everyone living in the European Union (EU).**
- When it was established in 1958 by 6 founding member states, the European Economic Community (EEC), was primarily an economic project
- It was introduced to bring consistency and clarity to the rights established at different times and in different ways in individual EU Member States.
- The Charter was declared in 2000, and came into force in December 2009 along with the Treaty of Lisbon.
- The Charter is interpreted by the Court of Justice of the European Union (CJEU).



Contents of the Charter

The Charter includes civil and political rights. It also includes the somewhat more controversially economic and social rights thus affirming the indivisibility of human rights.

These rights are divided into six chapters:

- Dignity
- Freedoms (Art. 6 – 19)
- Equality
- Solidarity
- Citizens' rights
- Justice

6.**Right to liberty and security.**

7.**Respect for private and family life.**

8.**Protection of personal data** - data should be processed fairly and for specified purposes and on the basis of consent or some other lawful basis.

9.**Right to marry and right to found a family** – guaranteed in accordance with national laws.

10.**Freedom of thought, conscience and religion** – this includes the right to publicly profess a religious belief and the right to change religious beliefs.

11.**Freedom of expression and information.**

12.**Freedom of assembly and of association** – including the right to join trade unions.

13.**Freedom of the arts and sciences** – this includes academic freedom.

14.**Right to education** – this includes the freedom for parents to have their children taught in accordance with religious (or other) beliefs.

15.**Freedom to choose an occupation and right to engage in work** – for non EU citizens who have the right to work in the EU, they should have the same working conditions as EU citizens.

16.**Freedom to conduct a business.**

17.**Right to property** – property refers to possessions, and not just land and/or housing. This includes intellectual property.

18.**Right to asylum.**

19.**Protection in the event of removal, expulsion or extradition** – this includes the prohibition of removing a person to a country where they are at risk of being tortured (or other degrading or inhuman treatment).

Focus On Privacy Rights

Article 7

Respect for private and family life

Everyone has the right to respect for his or her private and family life, home and communications.

Article 8

Protection of personal data

1. Everyone has the right to the protection of personal data concerning him or her.

2. Such data must be processed fairly for specified purposes and on the basis of the consent of the person concerned or some other legitimate basis laid down by law. Everyone has the right of access to data which has been collected concerning him or her, and the right to have it rectified.

3. Compliance with these rules shall be subject to control by an independent authority.

https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:12012P/TXT

How is the Charter different from the European Convention on Human Rights?

- The Charter can be seen as the overarching framework for human rights in the EU, of which the European Convention on Human Rights forms only one part
- **All of the ECHR rights are included in the Charter.**
- **The Charter however addresses some modern issues** that are not included in the ECHR (for example, human cloning, data protection).

(drafted by)	**European Convention on Human Rights (ECHR)**	**Charter of Fundamental Rights of the European Union**
First proclaimed	1950 by the Council of Europe	2000 by the European Union
Came into effect in Ireland	European Convention of Human Rights Act 2003. Before this, the ECHR and the decisions of the European Court of Human Rights were not binding in Ireland but were referred to by the courts.	In December 2009 along with the Treaty of Lisbon. The Charter has the same legal status as an EU treaty and therefore has direct effect in certain areas.
When is it applied in Ireland?	Irish law must be compatible with the ECHR. This applies when laws are being written or changed and when the courts are interpreting Irish laws. Every government department, local authority and public institution must perform its duties in a way that satisfies Ireland's obligations under the ECHR.	The Oireachtas must consider the Charter when *transposing* EU directives into Irish law, or passing legislation following an EU decision or regulation. For citizens, the Charter only applies where the case involves EU law.
Court interpreted by	The European Court of Human Rights in Strasbourg	The Court of Justice of the European Union in Luxembourg

Implementation of the Charter

- Rights provisions can be enforced though decisions in national courts or ultimately European Court of Justice
- Fundamental rights agency provides for database of relevant court cases.
- Under Article 8, among some cases listed

CJEU Case C-311/13 / Opinion

Data Protection Commissioner v Facebook Ireland Limited and Maximillian Schrems

Policy area: Information society
Deciding body type: Court of Justice of the European Union
Deciding body: Advocate General
Type: Opinion
Decision date: 19/12/2019
ECLI (European case law identifier): ECLI:EU:C:2019:1145

https://fra.europa.eu/en/case-law-database

Implementation of Charter

Ireland / High Court / [2014] IEHC 310

Key facts of the case:

Edward Snowden, who worked for the US National Security Agency (NSA), unlawfully appropriated thousands of highly classified NSA files in 2013. He subsequently disclosed them to various media outlets and revealed the interception and surveillance of internet and telecommunications systems by the NSA on a global scale. The applicant claimed that Snowden's disclosures demonstrated that there was no effective data protection regime in the US and that the Irish Data Protection Commissioner should have exercised his statutory powers to direct that the transfer of personal data from Facebook Ireland to its parent company in the US should cease. The Commissioner maintained that he was bound by the terms of a Decision of the European Commission issued in 2000 to hold that the data protection regime in the US was adequate and effective where the companies which transfer or process the data to the US self-clarify that they complied with the principles set down in this Decision. This case was a judicial review of the Commissioner's decision where the Court questioned whether the proper interpretation of pre-Lisbon EU instruments should have been re-evaluated by the Commissioner in light of the subsequent entry into force of the Charter of Fundamental Rights.

CJEU Case C-311/13 / Judgment

5. Commission Implementing Decision (EU) 2016/1250 of 12 July 2016 pursuant to Directive 95/46/EC of the European Parliament and of the Council on the adequacy of the protection provided by the EU-US Privacy Shield is invalid.

The EU Charter: scope

Article 51

1. *The provisions of this Charter are addressed to the institutions, bodies, offices and agencies of the Union with due regard for the principle of subsidiarity and to the Member States only when they are implementing Union law. They shall therefore **respect** the **rights**, **observe** the **principles** and **promote** the application thereof in accordance with their respective powers and respecting the limits of the powers of the Union as conferred on it in the Treaties.*
2. *The Charter does not extend the field of application of Union law beyond the powers of the Union or establish any new power or task for the Union, or modify powers and tasks as defined in the Treaties.*

Implications: Strict application within EU only and to its institutions or laws. If you want to consider for outside EU must use different legal basis such as the convention.

Privacy and Data Protection (I, II, III)

- The right to privacy – constitutional and statutory protections, privacy and the European Convention on Human Rights and EU Charter of Fundamental Rights
- Common law protection. Data Protection Regulation Scope, processing of personal data, legitimate bases, principles of data protection, sensitive data, issues of consent. Rights, supervision and enforcement.
- Data Protection in practice including international transfers, surveillance, cloud computing, and auditing. Current reform of the area.